

22STCV16359 22STCV16359

County: los-angeles

Division: Civil Law and Motion

Department: 508

Hearing date: 2026-08-11

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C508%2C08%2F11%2F2026

Source SHA-256: 775bc4b62b3142bbeed70f500cc52d654dd697a99cbcc98dc985df111529c6f9

Case Number: 22STCV16359 Hearing Date: August 11, 2026 Dept: 508

Superior

Court of California

County

of Los Angeles

Department 508

MEIR

LEVY,

Plaintiff,

vs.

TOVA

FAGAN, et al.

Defendants.

Case No.:

22STCV16359

Hearing

Date:

August 11,

2026

Hearing

Time: 8:30 a.m.

[TENTATIVE]

ORDER RE:

DEFENDANT Yael

SIMA WINTNER'S MOTION TO COMPEL THE DEPOSITION OF PLAINTIFF AND REQUEST FOR
SANCTIONS

Background

Plaintiff Meir Levy

("Plaintiff") filed this action on May 17, 2022 against Defendants Tova Fagan
and Yael Sima Wintner.

On July 11, 2023,

Plaintiff filed a first amended complaint.

On July 11, 2023,

Plaintiff filed an amendment to the complaint naming Pinchas (Paul) Wintner in
place of Doe 1.

On March 7, 2024, Plaintiff

filed the operative second amended complaint ("SAC") against Defendants Tova
Fagan, Yael Sima Wintner, and Pinchas (Paul) Wintner (collectively,
"Defendants"), alleging causes of action for (1) extortion, (2) conspiracy to
commit fraud and/or extortion, and (3) intentional infliction of emotional
distress.

On February 20, 2026, the parties engaged in an Informal

Discovery Conference, and the Court stated that "[t]he parties fulfilled their Informal
Discovery requirements re: the issues set forth in the Informal Discovery
Conference Statement file[d] by Defendant Wintner on January 29, 2026 as well
as to outstanding written discovery propounded by Defendant Wintner to
Plaintiff." (Minute Order 2/20/26.)

Defendant Yael Sima

Wintner ("Wintner") now moves to compel the deposition of Plaintiff and for monetary sanctions in the amount of \$1,650. Plaintiff did not file an opposition.

Request for
Judicial Notice

The Court grants Wintner's
request for judicial notice of Exhibit 1.

Legal Standard

Under Code of Civil Procedure section 2017.010, "any party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence."

"If, after service of a deposition notice, a party to the action or an officer, director, managing agent, or employee of a party, or a person designated by an organization that is a party under Section 2025.230, without having served a valid objection under Section 2025.410, fails to appear for examination, or to proceed with it, or to produce for inspection any document, electronically stored information, or tangible thing described in the deposition notice, the party giving the notice may move for an order compelling the deponent's attendance and testimony, and the production for inspection of any document, electronically stored information, or tangible thing described in the deposition notice." (Code Civ. Proc., § 2025.450, subd. (a).)

"If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent's control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production." (Code Civ. Proc., § 2025.480, subd. (a).)

Under Code of Civil Procedure section 2025.4, subdivision (g)(1), "[i]f a motion under subdivision (a) is granted, the court shall impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) in favor of the

party who noticed the deposition and against the deponent or the party with whom the deponent is affiliated, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”

Discussion

In support of the instant motion, Wintner’s counsel explains that “Plaintiff Meir Levy’s deposition was first lawfully noticed for April 16, 2025.” (Krueger Decl., ¶ 5, Ex. A.) “Plaintiff and his counsel did not appear for deposition on April 16, 2025, and a Certificate of Non-Appearance was taken.” (Krueger Decl., ¶ 6). Thereafter, “Plaintiff Meir Levy’s deposition was lawfully noticed for September 17, 2025. Wintner’s counsel lawfully served electronic notice of the deposition on September 4, 2025.” (Krueger Decl. ¶ 7, Ex. B.) “On September 12, 2025, counsel for Plaintiff sent electronic correspondence to Wintner’s counsel, requesting a change in date to the deposition. However, Plaintiff’s correspondence did not propose alternative dates and times for deposition, and did not present a formal objection to Defendant Wintner’s notice. Counsel for Defendant responded, requesting alternative dates upon which the deposition could be conducted. Counsel for Plaintiff did not respond. Thus, Plaintiff’s deposition remained on calendar for September 17, 2025.” (Krueger Decl. ¶ 8, Ex. C.) However, “Plaintiff Meir Levy and Plaintiff counsel did not appear for the lawfully noticed deposition and Defendant took a Certificate of Non-Appearance.” (Krueger Decl. ¶ 9, Ex. D.)

Wintner’s counsel further explains that “[f]ollowing that non-appearance I made several attempts to confer with counsel for Plaintiff telephonically, but Plaintiff did not respond. On November 4, 2025, Melissa Barcena of my office sent counsel for Plaintiff a detailed meet and confer correspondence regarding Plaintiff’s failure to appear for his September 17, 2025, deposition, indicating a Motion to Compel would be forthcoming. In response, counsel for Plaintiff did not offer dates upon which the depositions could occur.” (Krueger Decl. ¶ 10, Ex. E.) “Per the Court’s local rules, Defendant Wintner lawfully noticed an informal discovery conference regarding Plaintiff’s refusal to appear for deposition. Counsel for all parties appeared for the conference on February 20, 2026. Nevertheless, Plaintiff has failed to offer dates for deposition.” (Krueger Decl. ¶ 11). “After the February 20, 2026, informal discovery conference, my office again requested deposition dates. None were provided. Thus, Defendant re-noticed the deposition of Meir Levy for April 1, 2026.” (Krueger Decl., ¶ 15.) “Despite re-noticing

the deposition, Counsel for the Plaintiff and for the witness have continued to fail to provide dates on which the witness will be available for deposition.” (Krueger Decl., ¶ 16.) Finally, counsel attests that “[t]his Motion is necessary given Plaintiff’s discovery abuse despite lawfully serving a Notice of Deposition, and the quickly approaching trial date. Plaintiff’s failure to appear for deposition has hindered Defendant’s ability to obtain relevant, necessary and discoverable information related to Plaintiff’s alleged case. Defendant’s counsel will have limited time to conduct discovery and have been denied the opportunity to develop their defense to the case.” (Krueger Decl., ¶ 12.)

Wintner’s counsel’s declaration demonstrates that, on multiple occasions, she attempted to obtain Plaintiff’s deposition without success. Additionally, Wintner’s counsel’s informal meet and confer efforts similarly did not work because it requires cooperation from both parties. Based on the foregoing explanation, and in light of a lack of opposition, the Court finds it necessary to compel Plaintiff to sit for his deposition.

Wintner’s counsel also seeks sanctions in the amount of \$1,650.00. (Krueger Decl., ¶ 14.) Wintner’s counsel explains she spent three hours “drafting the underlying Motion, and all papers in support,” anticipates spending two hours evaluating the opposing papers and preparing a reply, and anticipates one hour attending the hearing. (Ibid.) Additionally, Wintner’s counsel seeks \$60 for a filing fee. (Ibid.) Wintner’s counsel has an hourly rate of \$265. (Ibid.) Given Plaintiff’s failure to informally meet and confer with Wintner and sit for a deposition, the Court finds that granting sanctions is warranted. Due to Plaintiff’s lack of opposition, the Court reduces the requested amount of hours by two, for a total award of \$1,120.

Conclusion

Based on the foregoing, Wintner’s motion for an order compelling the attendance of Plaintiff Meir Levy at deposition is GRANTED. The deposition is to take place within 30 days of the date of this order.

Wintner’s request for monetary sanctions against Plaintiff and his counsel of record is also GRANTED, in the amount of \$1,120.00.

Wintner is ordered to give notice of this Order.

DATED: August 11, 2026

Hon. Teresa A.

Beaudet

Judge, Los

Angeles Superior Court